



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35883182

Date: JAN. 22, 2025

Appeal of Vermont Service Center Decision

Form I-360, Petition for Amerasian, Widow(er), or Special Immigrant (Abused Spouse of U.S. citizen or Lawful Permanent Resident)

The Petitioner seeks immigrant classification as an abused spouse of a U.S. citizen under the Violence Against Women Act (VAWA) provisions, codified at section 204(a)(1)(A)(iii) of the Immigration and Nationality Act (the Act), 8 U.S.C. § 1154(a)(1)(A)(iii). The Director of the Vermont Service Center (the Director) denied the Form I-360, Petition for Amerasian, Widow(er), or Special Immigrant (VAWA petition). The matter is now before us on appeal. The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

A petitioner who is the spouse of a U.S. citizen may self-petition for immigrant classification if they demonstrate, among other requirements, that they entered into the marriage in good faith and were battered or subjected to extreme cruelty perpetrated by the spouse. Section 204(a)(1)(A)(iii)(I) of the Act. Evidence of a good faith marriage may include documents showing that one spouse has been listed as the other's spouse on insurance policies, property leases, income tax forms, or bank accounts; evidence regarding their courtship, wedding ceremony, shared residence, and experiences; birth certificates of any children born during the marriage; police, medical, or court documents providing information about the relationship; affidavits from individuals with personal knowledge of the relationship; and any other credible evidence. 8 C.F.R. § 204.2(c)(2)(i), (vii). While we must consider any credible evidence relevant to the VAWA self-petition, we determine, in our sole discretion, what evidence is credible and the weight to give to such evidence. Section 204(a)(1)(J) of the Act; 8 C.F.R. § 204.2(c)(2)(i).

The Act bars approval of a VAWA petition if the petitioner entered into the marriage giving rise to the petition while in exclusion, deportation, or removal proceedings, unless the petitioner has resided outside the United States for a period of two years after the date of marriage or establishes by clear and convincing evidence that the marriage was entered into in good faith. *See* sections 204(g) and 245(e)(3) of the Act, 8 U.S.C. §§ 1154(g) and 1255(e)(3) (outlining the restriction on, and exception to, marriages entered into while in exclusion, deportation, or removal proceedings); *see also* 8 C.F.R. § 204.2(c)(1)(iv) (providing that a self-petitioner "is required to comply with the

provisions of . . . section 204(g) of the Act”). Clear and convincing evidence is that which, while not “not necessarily conclusive, . . . will produce in the mind . . . a firm belief or conviction, or . . . that degree of proof which is more than a preponderance but less than beyond a reasonable doubt.” *Matter of Carrubba*, 11 I&N Dec. 914, 917 (BIA 1966).

The Petitioner was placed in removal proceedings and subsequently married her U.S. citizen spouse, M-C-H-,¹ in [REDACTED] 2015. The Petitioner filed her VAWA petition in January 2021. The Director denied the petition, finding that the Petitioner had not met her burden of establishing by clear and convincing evidence that she entered into marriage with M-C-H- in good faith, as required by section 204(g), because the Petitioner married her spouse while in removal proceedings, and she did not establish her eligibility for immigrant classification under section 201(b)(2)(A)(i) of the Act. The Director also noted discrepancies and credibility concerns in the record.

On appeal, the Petitioner contends that the Director did not give sufficient weight to the documentation previously submitted as proof of her and M-C-H-’s good faith marriage, including financial documentation, third-party affidavits, a November 2017 residential lease agreement, tax documentation pertaining to M-C-H-, and photographs. The Petitioner also submits additional financial documentation in the form of bills issued to the Petitioner and M-C-H- and a residential lease agreement from November 2015 detailing both the Petitioner’s and M-C-H-’s names.

The Petitioner’s statements and the support letters from friends lack probative detail regarding the Petitioner’s experiences with M-C-H- prior to their marriage and their intentions in marrying. The Petitioner’s statements provide little detail of mutual interests or circumstances and events demonstrating the Petitioner’s involvement prior to or during the marriage. As for the submitted household bills and residential leases referencing the Petitioner’s and M-C-H-’s name and purported joint address, said documentation does not establish the commingling of resources and shared financial responsibilities normally associated with a bona fide marriage.

Additionally, on appeal the Petitioner had not sufficiently addressed the discrepancies and credibility concerns identified in the Director’s decision. As an example, as noted by the Director and left unaddressed on appeal, although the Petitioner stated that she resided with M-C-H- since September 2014 in [REDACTED] Connecticut, the Form W-2, Wage and Tax Statement, for 2015 issued to M-C-H- lists his residence as an apartment in [REDACTED] Massachusetts. While the Petitioner states on appeal that she can be confused with dates in light of the abuse and genocide she has experienced in her life, it remains that the totality of the evidence in the record offers few probative details of and little additional insight into the Petitioner’s intentions in marrying M-C-H-.

Because the Petitioner entered into marriage while in removal proceedings, the Petitioner must establish by clear and convincing evidence that she entered into marriage with M-C-H- in good faith. Although we acknowledge the Petitioner’s explanation for the scant documentary evidence, the evidence in the record and on appeal offers little insight into the Petitioner’s intentions in marrying

¹ Initials are used to protect the privacy of individuals.

M-C-H-, their courtship, or the dynamics of the marriage, or details of mutual interests or circumstances and events demonstrating the Petitioner's involvement prior to or during the marriage.

In conclusion, the Petitioner has not established that she entered into her marriage to her U.S. citizen spouse in good faith. Consequently, she has not demonstrated that she is eligible for immigrant classification under VAWA.

ORDER: The appeal is dismissed.